

M/s Galaxy Papers Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 21 March 2017 · Writ-C No. 30363 of 2014 · **Writ dismissed; additional-security challenge failed by reference**

HEADNOTE

Writ seeking quash of a para 4.20 additional-security demand was dismissed by adopting the same-date order in connected Writ-C No. 30898 of 2016. An earlier 28 May 2014 interim restraint on the demand therefore fell with the dismissal.

FACTUAL SUMMARY

Galaxy Papers Pvt. Ltd. challenged Paschimanchal Vidyut Vitran Nigam's 2 April 2014 notice demanding additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. On 28 May 2014 a Division Bench connected the writ with WP 51844 of 2009 (Supreme Ceramics Ltd. v. PVVNL), called for a counter, and restrained the demand. On 21 March 2017 the Chief Justice's Bench dismissed the petition, adopting that day's order in Writ-C No. 30898 of 2016.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ seeking quashing of the 02.04.2014 additional-security demand under paragraph 4.20 of the U.P. Electricity Supply Code, 2005, was dismissed; reasons were to be read from the same-date order in Writ-C No. 30898 of 2016. The 28.5.2014 interim restraint on demanding additional security stood dissolved. ¶ 1

PRINCIPLE TAGS

additional-security Writ seeking quash of a para 4.20 additional-security demand was dismissed by adopting the same-date order in connected Writ-C No. 30898 of 2016. An earlier 28 May 2014 interim restraint on the demand therefore fell with the dismissal. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd. (Writ Petition No. 51844 of 2009, order dated 7.10.2009)</i>			2014 order	Referred